

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 923

Introduced by Clouse, 37; Dorn, 30; Meyer, 17.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to counties; to amend sections 23-346.01,
- 2 23-1303, and 23-1309, Reissue Revised Statutes of Nebraska; to
- 3 change provisions relating to inventory and discharge records and
- 4 warrants; to eliminate provisions regarding registration of farm,
- 5 ranch, or home names; to repeal the original sections; and to
- 6 outright repeal section 23-1313, Reissue Revised Statutes of
- 7 Nebraska.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 23-346.01, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 23-346.01 ~~In It shall be the duty of the county clerk, in all~~
4 counties having a population of one hundred fifty thousand or more
5 inhabitants as determined by the most recent federal decennial census, on
6 ~~or before December 1, annually, to prepare separate estimates of the~~
7 ~~supplies, materials, equipment and machinery required for the use of the~~
8 ~~county officers during the coming year, which by law are not required to~~
9 ~~be furnished by the state, and, in order to properly estimate the amounts~~
10 ~~of supplies, materials, equipment and machinery to be needed by the~~
11 ~~county government, the county clerk or the county clerk's designee shall~~
12 keep a perpetual inventory of all personal property of the county.

13 **Sec. 2.** Section 23-1303, Reissue Revised Statutes of Nebraska, is
14 amended to read:

15 23-1303 (1) The county clerk shall not issue any county warrants
16 except upon claims approved by the county board. Every warrant issued
17 shall be numbered consecutively as allowed from July 1 to June 30,
18 corresponding with the fiscal year of the county. The county clerk shall
19 maintain records including the date, amount, and number of each warrant,
20 the name of the person to whom a warrant is issued, and the date a
21 warrant is returned as canceled. The records shall be made accessible to
22 the public for viewing, in either an electronic or printed format.

23 (2)(a) The county clerk shall develop and implement a system of
24 warrant preparation and issuance by electronic or mechanical means which
25 is compatible with the funds transfer system established by the county
26 treasurer pursuant to subsection (6) of this section. The county clerk
27 may combine warrants for individual funds into a summary warrant that
28 lists each fund and the amount requested from such fund.

29 (b) Warrant includes an order issued by the chairperson of the
30 county board and countersigned by the county clerk directing that the
31 county treasurer make payment in a specified amount to a specified payee

1 by the use of a dual signature negotiable instrument as provided for in
2 subsections (3) and (4) of this section, an electronic funds transfer
3 system, a telephonic funds transfer system, funds transfers as provided
4 in article 4A, Uniform Commercial Code, a mechanical funds transfer
5 system, or any other funds transfer system established by the county
6 treasurer.

7 (3) The chairperson of the county board shall sign each warrant or
8 shall cause each warrant to be signed in his or her behalf either
9 personally, by delegation of authority, or by facsimile or electronic
10 signature. The signature of the chairperson of the county board shall
11 signify that the payment intended by a warrant bearing such signature is
12 proper under the appropriate laws of the state and resolutions of the
13 county.

14 (4) The county clerk shall countersign all warrants issued by the
15 chairperson of the county board either personally, by delegation of
16 authority, or by facsimile or electronic signature.

17 (5) The county treasurer shall, if requested by the county clerk or
18 the county board, establish procedures and processes for facsimile or
19 electronic signature of warrants.

20 (6) The county treasurer may establish and operate an electronic
21 funds transfer system, a telephonic funds transfer system, funds
22 transfers as provided for in article 4A, Uniform Commercial Code, a
23 mechanical funds transfer system, or any other funds transfer system for
24 the payment of funds from and the deposit of receipts into the county
25 treasury. Such system as established by the county treasurer shall employ
26 internal control safeguards and after meeting such safeguards shall be
27 deemed to satisfy any signature requirements. The use of an electronic
28 funds transfer system, a telephonic funds transfer system, funds
29 transfers as provided for in article 4A, Uniform Commercial Code, a
30 mechanical funds transfer system, or any other funds transfer system
31 established by the county treasurer shall not create any rights that

1 would not have been created had an order, drawn by the chairperson of the
2 county board upon the county treasurer directing the latter to pay a
3 specified amount to a specified payee by the use of a dual signature
4 negotiable instrument as provided for in subsections (3) and (4) of this
5 section, been used as the payment medium.

6 **Sec. 3.** Section 23-1309, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 23-1309 (1) It shall be the duty of the county clerk in each county
9 to keep in a separate book or books, entitled Discharge Record, a copy of
10 all discharges or records of separation from active duty from the armed
11 forces of the United States. Information contained in the Discharge
12 Record shall be confidential and made available only to the veteran,
13 county veterans service officer, or post service officer of a recognized
14 veterans organization.

15 (2) The county clerk may transfer the Discharge Record to the State
16 Archives of the Nebraska State Historical Society for permanent
17 preservation after the veteran's federal Official Military Personnel File
18 becomes a public archival record or after sixty-two years, whichever is
19 later.

20 **Sec. 4.** Original sections 23-346.01, 23-1303, and 23-1309, Reissue
21 Revised Statutes of Nebraska, are repealed.

22 **Sec. 5.** The following section is outright repealed: Section
23 23-1313, Reissue Revised Statutes of Nebraska.